

negligence in ownership and maintenance while the user entity is liable for negligence during use.

Based on the foregoing, the demurrer is overruled in its entirety. Defendant Roseville City School District shall file an answer to plaintiffs' first amended complaint on or before **August 28, 2026**.

Roseville City School District's Motion for Sanctions

Defendant Roseville City School District moves for sanctions, stating plaintiffs had no evidentiary or factual basis for filing the first amended complaint against the district. (Mot. for Sanctions at 5.) Plaintiffs oppose the motion.

As defendant's demurrer has been overruled in its entirety, the motion for sanctions is denied.

10. S-CV-0055662 Fallahi-Marzooni, Keyan v. Peers, Jessica

Defendant's Motion for Judgment on the Pleadings

Defendant Jessica Peers move for judgment on the pleadings as to each cause of action alleged in plaintiff Keyan Fallahi-Marzooni's first amended complaint. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Ibid.*)

Previously, the court continued the hearing to permit the parties to complete the meet and confer process. Declarations filed by the parties establish that meet and confer did occur after the continuance was ordered but did not resolve any issues identified by the motion.

As a preliminary matter plaintiff argues the motion is barred as the court overruled a prior demurrer to the first amended complaint brought by defendant. The court notes defendant's demurrer was overruled on procedural grounds based on the omission of a memorandum of points and authorities. A court may grant a motion for judgment on the pleadings if the basis of the motion is not a legal argument that was previously overruled on demurrer. (*Faber v. Bay View Terrace Homeowners Assn.* (2006) 141 Cal.App.4th 1007, 1013.) Here, the court did not previously consider or rule on the substantive legal arguments presented by the motion for judgment on the pleadings. The court finds defendant's motion is properly before the court.

Defamation (Libel and Slander)

Plaintiff's first cause of action for defamation (libel and slander) alleges defendant knowingly published false statements to third parties accusing plaintiff of harassment, stalking, sexual misconduct, restraining orders and other dangers. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for a libel or slander action is one year. (Code Civ. Proc. §340 (c); *Federal Deposit Ins Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 348.) "The elements of a defamation claim are: (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and has a natural tendency to injure or causes special damage." (*Sanders v. Walsh* (2013) 219 Cal.App.4th 855, 862.). "Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected." (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112). "[P]ublication occurs when a statement is communicated to any person other than the party defamed." (*Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284.)

To extinguish a cause of action on statute of limitations grounds by way of demurrer or motion for judgment on the pleadings, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint *might* be time barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, while certain defamatory statements fall outside of the statute of limitations, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the first cause of action.

Intentional Infliction of Emotional Distress

Plaintiff's second cause of action for intentional infliction of emotional distress. Defendant argues the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for intentional infliction of emotional distress is two years. (Code Civ. Proc. § 335.1; *Pugliese v. Superior Court* (2007) 146 Cal.App.4th 1444, 1450.) A cause of action for intentional infliction of emotional distress exists where there is "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.). A defendant's conduct is "outrageous" when

it is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Id.*).

Here, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the second cause of action.

Negligent Infliction of Emotional Distress

Plaintiff’s third cause of action alleges negligent infliction of emotional distress. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

A claim for negligent infliction of emotional distress is essentially a claim for negligence. (*Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1165.) The statute of limitations for this claim is two years. (Code Civ. Proc. § 335.1.) “The threshold element for a cause of action for negligence is the existence of a duty to use care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Paz v. State of California* (2000) 22 Cal.4th 550, 559.) The plaintiff must show that the defendant breached the duty of reasonable care and that such breach was a proximate cause of the injury. (*Brown v. Poway Unified School District* (1993) 4 Cal.4th 820, 826.)

Here, the court cannot conclude that the first amended complaint clearly and affirmatively establishes the entirety of the cause of action is barred. Nor does defendant establish that the claim fails to state sufficient facts to constitute a valid cause of action. The motion is denied as to the third cause of action.

Retaliation

Plaintiff’s fourth cause of action alleges retaliation. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

Retaliation may be alleged under the Fair Employment and Housing Act (FEHA) against an employer. Here, the first amended complaint does not plead an employment relationship between plaintiff and defendant under which the California Fair Employment and Housing Act would give rise to a retaliation claim. “[T]he fact that section 12940, subdivision (h) makes it unlawful for any ‘person’ to retaliate for complaining of discrimination cannot be read to impose liability on ‘nonemployer individuals.’” (*Fitzsimmons v. California Emergency Physicians Medical Group* (2012) 205 Cal.App.4th 1423, 1428.)

As to plaintiff's fourth cause of action for retaliation, defendant's the motion is granted without leave to amend.

Harassment

Plaintiff's fifth cause of action alleges harassment under Code of Civil Procedure section 527.6. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

"The elements of unlawful harassment, as defined by the language in Code of Civil Procedure section 527.6 are as follows: (1) 'a knowing and willful course of conduct' entailing a 'pattern' of 'a series of acts over a period of time, however short, evidencing continuity of purpose'; (2) 'directed at a specific person'; (3) 'which seriously alarms, annoys, or harasses the person'; (4) 'which serves no legitimate purpose'; (5) which 'would cause a reasonable person to suffer substantial emotional distress' and 'actually cause[s] substantial emotional distress to the plaintiff'; and (6) which is not a '[c]onstitutionally protected activity.' (*Schlid v. Rubin* (1991) 232 Cal.App.3d 755, 762).

Code of Civil Procedure section 527.6 permits a person to petition the court for a temporary restraining order and order prohibiting harassment after hearing as provided in the statute. Plaintiff does not demonstrate that the statute permits a civil claim for harassment to be alleged outside of the context of a petition for civil harassment restraining order. As to plaintiff's fifth cause of action for harassment, defendant's motion for judgment on the pleadings is granted without leave to amend.

Tortious Interference with Prospective Economic Advantage

Plaintiff's sixth cause of action alleges tortious interference with prospective economic advantage. Defendant moves for judgment on the pleadings on the grounds the claim is barred by the applicable statute of limitations and fails to state sufficient facts to constitute a valid cause of action.

The statute of limitations for this claim is two years. (Code Civ. Proc. §339(1).) A claim for tortious interference with prospective economic requires the plaintiff to prove five elements: "(1) an economic relationship between plaintiff and some third party, with the probability of future economic benefit to plaintiff; (2) defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to plaintiff proximately caused by the acts of defendant." (*Youst v. Longo* (1987) 43 Cal.3d 64, 71, fn. 6.) The first element is 'an economic relationship between the plaintiff and some third person containing the probability of future economic benefit to the plaintiff.' (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 330). And the "intent" element requires, at minimum, that plaintiff plead and prove that "the defendant knew that the interference was certain or substantially certain to occur as a result of its action." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1154. See *Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 292 ["A] plaintiff seeking to recover for alleged

interference with prospective contractual or economic relations must plead and prove as part of its case-in-chief that the defendant...knowingly interfered with the plaintiff's expectancy"].).

The allegations of the first amended complaint are insufficient to validly state this claim as plaintiff fails to identify any specific third party with whom he had a relationship that was likely to result in future economic benefit. As to plaintiff's sixth cause of action, the motion is granted without leave to amend.

Civil Conspiracy

Plaintiff's seventh cause of action alleges civil conspiracy. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action.

The elements of civil conspiracy are: (1) the formation and operation of the conspiracy, (2) wrongful conduct in furtherance of the conspiracy, and (3) damages arising from the wrongful conduct. (*Kidron v. Movie Acquisition Corp.* (1995) 40 Cal.App.4th 1571, 1581.) Civil conspiracy is not an independent tort. (*Applied Equipment Corp v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511 ["Conspiracy is not a cause of action"].) Rather, civil conspiracy is a "legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration." (*Id.*)

The court finds the first amended complaint fails to allege sufficient facts to state a valid cause of action for conspiracy. As to plaintiff's seventh cause of action, defendant's motion for judgment on the pleadings is granted without leave to amend.

Fraud

Plaintiff's eighth cause of action alleges fraud. Defendant moves for judgment on the pleadings on the grounds the claim fails to state sufficient facts to constitute a valid cause of action and lacks particularity.

"The elements of fraud, which give rise to the tort action for deceit are, (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Golden Eagle Land Investment, L.P. v. Rancho Santa Fe Association* (2018) 19 Cal.App.5th 399, 428.) "In California, fraud must be plead specifically; general and conclusory allegations do not suffice. 'Thus "the policy of liberal construction of the pleadings... will not ordinarily be invoked to sustain a pleading defective in any material respect ... This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means representations were tendered.'" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Plaintiff's eighth cause of action lacks the necessary specificity to plead fraud, and plaintiff does not plead reliance on any allegedly false or misleading statements made by defendant. Moreover, the alleged misrepresentations were made not to the plaintiff, but rather to the California Civil Rights Department. (First Amend. Compl. at pgs. 50-54, Exh. J).

As to plaintiff's eighth cause of action for fraud, defendant's motion for judgment on the pleadings is granted the motion is granted without leave to amend.

Conclusion

Defendant's motion for judgment on the pleadings is granted without leave to amend as to the third through eighth causes of action and is otherwise denied. Defendant shall file and serve her answer to the first amended complaint on or before August 28, 2026.

11. S-CV-0056495 Olberding, Deborah M v. Boone, Christopher M

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **August 12, 2026, at 8:30 a.m. in Department 3** before Commissioner Michael A. Jacques. Department 3 is located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorney's Fees

Respondent moves for attorney's fees as the alleged prevailing party in a civil harassment restraining order (CHRO) proceeding. Petitioner opposes the motion.

Background

On December 2, 2025, petitioner Deborah Marie Olberding filed a request for civil harassment restraining order against respondent Christopher Michael Boone in this court. (Theodoropoulos Decl., ¶ 5, Exh. A.) On January 7, 2026, petitioner dismissed the petition without prejudice. (Resp't Opp'n, Exh. A.) As the court had not yet processed the dismissal by the hearing date, on January 9, 2026, the court dropped the matter when petitioner failed to appear at the hearing. On January 26, 2026, the Santa Clara County Court entered a five-year civil harassment restraining order after hearing against Ms. Olberding, which she did not contest. (Theodoropoulos Decl., ¶¶ 5-6, Exh. C.) On April 20, 2026, the Santa Clara County Superior Court granted Mr. Boone's motion for attorney's fees and costs in the total amount of \$14,112.53. (Theodoropoulos Supp. Decl., ¶¶ 7-8, Exh. G.)

Respondent seeks an award of attorney's fees of \$19,255.75 incurred for this CHRO action, plus additional attorney's fees incurred in filing this motion.